

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Christina Vuong	Team: Team # 3	CCRB Case #: 201302901	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 04/05/2013 8:00 PM	Location of Incident: In front of § 87(2)(b) [REDACTED] [REDACTED]	18 Mo. SOL 10/5/2014	Precinct: 113
Date/Time CV Reported	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 04/11/2013 10:41 AM

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. Officers			Unknown
2. SGT Christophe Ward	02117	934299	113 PCT
3. POM Dennis Jaeger	09389	940297	113 PCT
4. An officer			Unknown

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Greg Levine	18504	950744	113 PCT
2. POM John Marcantonio	08417	937020	113 PCT
3. POM Laine Brancato	13183	917327	113 PCT
4. POM Brett Devine	17862	951678	113 PCT
5. POM Ryan Doherty	20696	951684	113 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Christophe Ward	Abuse: Sgt. Christopher Ward authorized the stop of the vehicle in which § 87(2)(b) [REDACTED] was an occupant.	A . Exonerated
B . SGT Christophe Ward	Discourtesy: Sgt. Christopher Ward spoke rudely to § 87(2)(b) [REDACTED]	B . Unsubstantiated
C . POM Dennis Jaeger	Force: PO Dennis Jaeger used physical force against § 87(2)(b) [REDACTED]	C . Exonerated
D . SGT Christophe Ward	Force: Sgt. Christopher Ward used physical force against § 87(2)(b) [REDACTED]	D . Exonerated
E . Officers	Force: Officers used physical force against § 87(2)(b) [REDACTED]	E . Exonerated
F . Officers	Force: Officers struck § 87(2)(b) [REDACTED] with blunt instruments.	F . Unfounded
G . Officers	Force: Officers struck § 87(2)(b) [REDACTED] with asps.	G . Unfounded
H . Officers	Discourtesy: Officers spoke rudely to § 87(2)(b) [REDACTED]	H . Exonerated
I . An officer	Force: An officer pointed his gun at individuals.	I . Exonerated
J . Officers	Force: Officers used physical force against § 87(2)(b) [REDACTED]	J . Alleged Victim Unavailable

Officer(s)	Allegation	Investigator Recommendation
§ 87(2)(g), § 87(4-b)		

Case Summary

On April 5, 2013, Lt. Nicholas Van Dyke of the 113th Precinct reported the following complaint on behalf of § 87(2)(b) via phone with the Internal Affairs Bureau (IAB). On the same date, § 87(2)(b) filed a duplicate complaint on behalf of her cousins, § 87(2)(b) and § 87(2)(b) via phone with IAB. On April 11, 2013, the Civilian Complaint Review Board (CCRB) received this complaint from IAB under log number 2013-14834.

On April 5, 2013 at 7:50 p.m., Sgt. Christopher Ward and PO Dennis Jaeger of the 113th Precinct stopped § 87(2)(b)'s vehicle in front of § 87(2)(b) in Queens. The following allegations resulted:

- **Allegation A- Abuse of Authority: Sgt. Christopher Ward authorized the stop of the vehicle in which § 87(2)(b) was an occupant.**

§ 87(2)(g)

Therefore, it is recommended that Allegation A be closed as **exonerated**.

- **Allegation B- Discourtesy: Sgt. Christopher Ward spoke rudely to § 87(2)(b)**

§ 87(2)(g)

Therefore, it is recommended that Allegation B be closed as **unsubstantiated**.

- **Allegation C- Force: PO Dennis Jaeger used physical force against § 87(2)(b)**

- **Allegation D- Force: Sgt. Christopher Ward used physical force against § 87(2)(b)**

- **Allegation E- Force: Officers used physical force against § 87(2)(b)**

§ 87(2)(g)

Therefore, it is recommended that Allegations C, D, and E be closed as **exonerated**.

- **Allegation F- Force: Officers struck § 87(2)(b) with blunt instruments.**

- **Allegation G- Force: Officers struck § 87(2)(b) with asps.**

§ 87(2)(g)

Therefore, it is recommended that Allegations F and G be closed as **unfounded**.

- **Allegation H- Discourtesy: Officers spoke rudely to § 87(2)(b)**

- **Allegation I- Force: An officer pointed his gun at individuals.**

§ 87(2)(g)

Therefore, it is recommended that Allegations H and I be closed as **exonerated**.

- **Allegation J- Force: Officers used physical force against § 87(2)(b)**

§ 87(2)(g)

Therefore, it is recommended that Allegation J be closed as **victim unavailable**.

- § 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(2)(b)

Results of Investigation

Surveillance Video Footage:

§ 87(2)(b) in Queens (encl. M12-13)

A forty-minute video clip was obtained from the NYPD's Technical Assistance Response Unit (TARU) camera located at § 87(2)(b), the building directly across from the incident location. It does not capture the intersection of § 87(2)(b).

At 7:50 p.m., § 87(2)(b)'s vehicle comes to a stop ahead of an RMP with its lights activated. The camera captures § 87(2)(b)'s car at an angle, cutting off view of the hood and front passenger side. At 7:51 p.m., PO Jaeger approaches the driver's side and Sgt. Ward approaches the front passenger's side and leaves the camera view. PO Jaeger opens the driver's side door. PO Jaeger steps back and § 87(2)(b) is leaning forward to exit. § 87(2)(g). After § 87(2)(b) steps out, it appears PO Jaeger is touching § 87(2)(b)'s left arm with his left hand. Sgt. Ward is seen walking around the rear of the vehicle.

A second later, § 87(2)(b) flips his left hand back and steps towards PO Jaeger, who tries to grab for both of § 87(2)(b)'s hands. § 87(2)(b) pulls his right elbow backwards, then forwards as he twists his body to the left. § 87(2)(b)'s right arm comes up to the level of Sgt. Ward's shoulder. § 87(2)(b) leans over, pulls backward further into the street and to his right, and all three turn slightly counter-clockwise. Sgt. Ward has hold of § 87(2)(b)'s left arm, and PO Jaeger § 87(2)(b)'s right arm. While still bending forward, § 87(2)(b) stumbles two steps forward towards the trunk of his vehicle, pulling the officers forward in an uncontrolled motion. It does not appear the officers are pushing him into the vehicle. Sgt. Ward and PO Jaeger are simultaneously pulling § 87(2)(b)'s hands behind his back. § 87(2)(b) is leaning on his stomach against the side of the trunk, with Sgt. Ward and PO Jaeger leaning into him. § 87(2)(b)'s legs do not appear to be moving, but his upper body appears to be lifting up from the trunk. PO Jaeger and Sgt. Ward's legs move slightly, suggesting a struggle to maintain a grip on § 87(2)(b) or to bring his arms behind him. The three move together towards the rear of the car. § 87(2)(b) pulls his body to the right and towards the sidewalk, causing the officers to twist one-hundred-eighty degrees. As PO Jaeger pulls § 87(2)(b)'s right arm to the side, § 87(2)(b) pulls it back towards his body.

Within sixteen seconds of § 87(2)(b) stepping out of his vehicle, Sgt. Ward's body lowers behind the trunk, § 87(2)(b)'s body flips to the left side over Sgt. Ward, and PO Jaeger is pulled downwards on top of § 87(2)(b). They leave the view of the camera.

Almost a minute later at 7:53 p.m., PO Marcantonio walks north past § 87(2)(b)'s vehicle, and then runs behind the trunk. Sgt. Ward points PO Marcantonio south on the sidewalk. PO Marcantonio runs out of view of the camera. Fifteen seconds later, three RMPs pull up into the housing complex. In the next thirty seconds, at least five unidentified uniformed officers converge into the space behind § 87(2)(b)'s car, but an MTA bus obstructs the camera view on what actions they take.

By 7:55 p.m., eight uniformed officers are gathered in the space behind § 87(2)(b)'s trunk. The group of officers splits, and at least two unidentified officers are escorting § 87(2)(b) without difficulty south on the sidewalk, out of view of the camera. At 7:56 p.m., the RMPs start to leave the scene, and § 87(2)(b)'s vehicle is driven away by an unknown officer.

At 7:59 p.m., approximately ten civilians are in the street, some making hand gestures amidst active traffic. The TARU camera starts moving and focuses on these individuals travelling south on § 87(2)(b). At 8:02 p.m., the camera captures the north and southeast side of § 87(2)(b) and § 87(2)(b) where it appears that over sixty individuals are gathered. They do not appear to be interacting with any officers at that time.

The video clip does not show § 87(2)(b) clearly throwing a punch at PO Jaeger, or of Sgt. Ward or PO Jaeger piggybacking on § 87(2)(b). No officers are captured in the video punching, kicking, or striking § 87(2)(b) with a radio, asp, or other blunt object.

§ 87(2)(b) **in Queens**

Video surveillance footage was also obtained from the § 87(2)(b), located at § 87(2)(b), one storefront away from the southeast corner of § 87(2)(b) and § 87(2)(b). The footage does not capture the incident, which is halfway up the next block on the opposite side of the street. The camera captures the entrance to the store and only extends to the corner of the block.

Civilian Statements:

Complainant/Witness: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of the incident.

Statement to the IAB Command Center (encl. E1-2)

On April 5, 2013, § 87(2)(b) called the IAB Command Center and reported that unidentified officers kicked her cousin § 87(2)(b) in the face, causing him to bleed, and that unidentified officers beat up and arrested § 87(2)(b) and her cousin § 87(2)(b).

§ 87(2)(b)

Attempts to Contact § 87(2)(b)

Neither § 87(2)(b) nor his mother were able to provide further contact information for § 87(2)(b) and no police documents revealed other contact information for § 87(2)(b) beyond a phone number. A search of the Lexis-Nexis database searches was negative, but a search of the New York State Department of Motor Vehicles (DMV) database revealed an address. On July 18, 2013, § 87(2)(b) left a voicemail for the CCRB specifying her work hours but not providing any statements regarding the incident. However, § 87(2)(b) did not respond to any contact attempts via phone or mail afterwards. None of the please call letters sent to § 87(2)(b) were returned to the CCRB as undeliverable by the United States Postal Service. A query of the New York City Department of Correction (DOC) database on March 18, 2014 showed that she was not incarcerated at the time of the aforementioned contact attempts. As of the date of this report, § 87(2)(b) has not contacted the CCRB to provide a statement. § 87(2)(g)

Victim: § 87(2)(b)

- § 87(2)(b) a § 87(2)(b) black man with black hair and brown eyes, was § 87(2)(b) at the time of the incident. § 87(2)(b) is § 87(2)(b)'s cousin.

Statements to Medical Personnel (encl. J7-31)

On § 87(2)(b) § 87(2)(b) was seen by FDNY Emergency Medical Services personnel but did not make any statements to them.

On § 87(2)(b) § 87(2)(b) informed medical personnel at § 87(2)(b) that he was involved in an altercation and that he “was jumped,” as well as struck with

“fists and sticks.” § 87(2)(b)

At § 87(2)(b) § 87(2)(b) stated that he was fine and that the only thing he needed was to use the bathroom.

Statement to IAB Group 9 (encl. L1-13)

On April 6, 2013 at 12:05 a.m., § 87(2)(b) provided a statement to Sgt. Thomas Meehan and Det. Marina Phillips of IAB Group 9 at § 87(2)(b). He stated that he was “tussling” with Sgt. Ward and PO Jaeger. He acknowledged resisting arrest by pulling his arms away when the officers attempted to handcuff him. He added that he was punched in the face. § 87(2)(g)

Arrest Photo (encl. F6)

§ 87(2)(b)'s arrest photo showed a bandage covering the bridge of his nose, and a small blood stain in the center of the bandage. No other obvious physical injuries are visible to his face or head.

Other Photos (encl. H1)

§ 87(2)(b)'s fiancée § 87(2)(b) presented two photos she took on her phone on April 8, 2013 showing a blood clot to § 87(2)(b)'s left eye, and an abrasion underneath his left eyebrow.

CCRB Statement (encl. F1-10)

On June 7, 2013, § 87(2)(b) provided an in-person statement at the CCRB. He declined to provide any telephone statements prior. On June 10, 2013, § 87(2)(b) was contacted by the CCRB and provided additional details to the CCRB in a telephone statement.

On April 5, 2013 at 7:50 p.m., § 87(2)(b) after visiting the apartment of an unidentified friend, exited the rear entrance of § 87(2)(b) in Queens, part of the § 87(2)(b) NYCHA complex, into the parking lot along § 87(2)(b). He walked alone to his car. He denied consuming any drugs or alcohol that day. During his unsworn telephone statement, § 87(2)(b) stated he last interacted with his friend inside of the apartment.

§ 87(2)(b) started driving and made a right turn onto § 87(2)(b). He continued onto § 87(2)(b) and then made another right turn south on § 87(2)(b). During his unsworn telephone statement, § 87(2)(b) stated that he stopped at the stop sign on § 87(2)(b). § 87(2)(b) did not respond to subsequent contact attempts by phone, e-mail, or mail for clarification on whether he activated any lights or signals, and if he obeyed all traffic regulations.

As he turned south onto § 87(2)(b), § 87(2)(b) observed a marked RMP drive northbound. The RMP made a U-turn at the intersection and followed § 87(2)(b)'s car for half a block before activating its lights and sirens. § 87(2)(b) immediately pulled over in front of § 87(2)(b). Sgt. Christopher Ward, the front passenger, and PO Dennis Jaeger, the driver, of the 113th Precinct, identified by the investigation, exited the RMP and approached the front passenger's side and driver's side, respectively.

§ 87(2)(b) denied making any body movements up to this point. He denied reaching for his mouth or face. He rolled down the front windows, turned off the car, and placed his keys in the center console. His hands were in his lap or on the steering wheel. During his unsworn telephone statement, he stated that nothing was inside of his mouth.

Sgt. Ward said, “Step the fuck out of the car.” § 87(2)(b) asked why. PO Jaeger opened the driver's side door and pulled § 87(2)(b) out by his arm and hoodie. § 87(2)(b) moved backwards to extricate himself from PO Jaeger's grasp. He did not contact PO Jaeger's body. Sgt. Ward ran around the front of the car and also grabbed him. The officers instructed § 87(2)(b) to put his hands behind his back and get on the ground. He verbally refused and began screaming for attention.

PO Jaeger jumped on § 87(2)(b)'s back and crossed his arms over § 87(2)(b)'s shoulders. § 87(2)(b) had both of his hands up in the air, and began walking towards the rear of his vehicle towards the sidewalk as PO Jaeger hung from his back. § 87(2)(b) did not see Sgt. Ward and believed that Sgt. Ward was also hanging from his back. Other than walking and having his hands in the air, § 87(2)(b) denied making any other body movements or otherwise contacting Sgt. Ward or PO Jaeger. Approximately fifteen or twenty unidentified individuals gathered around and screamed at PO Jaeger and Sgt. Ward to get off of § 87(2)(b). He did not see any persons physically intervene.

Within seconds, thirty to forty plainclothes and uniformed officers arrived in marked and unmarked cars. At least five officers surrounded § 87(2)(b). While still standing, he felt a heavy object he could not describe strike him repeatedly in his face and head. He felt what seemed to be metal asps striking his knees. He was unable to describe how many times he was struck, but stated the beating lasted fifteen minutes.

Weakened, § 87(2)(b) dropped down to the ground, landing on his stomach and chest. His head did not hit the ground. Unidentified officers handcuffed one of § 87(2)(b)'s arms. He deliberately placed his other hand underneath his stomach. He made no other body movements. Unidentified officers kicked § 87(2)(b) approximately ten times in his face, the back and sides of his head, his ribs, and his back. They instructed § 87(2)(b) to give them his "fucking hands." After a minute or two, § 87(2)(b) allowed the officers to grab his other hand.

§ 87(2)(b) was taken to an RMP. From the back of the RMP, he saw an unidentified white male plainclothes officer with dark brown hair standing five to eight feet away from the RMP. The officer pulled out a gun, and while pointing the gun, waved it back and forth at the crowd of approximately fifty unidentified civilians, who were standing two to three feet away from the officer. The officer was not pointing the gun at any particular person. The RMP then drove away.

At the 113th Precinct stationhouse, an unidentified plainclothes officer dressed in a suit informed § 87(2)(b) that Sgt. Ward and PO Jaeger saw him make a drug transaction and he swallowed something. The officer then told him Sgt. Ward and PO Jaeger pulled him over for a traffic stop, and finally told him that Sgt. Ward and PO Jaeger said he had a gun inside of his car.

§ 87(2)(b) sustained a laceration to the middle of the bridge of his nose, a blood clot in his eye, a cut on his eye, and a bruise on his knee. § 87(2)(b) was taken to § 87(2)(b) for treatment, after which he was taken to Queens Central Booking. He was charged with assaulting an officer and other crimes he did not recall.

§ 87(2)(b) did not know § 87(2)(b) was involved in the incident until he saw § 87(2)(b) at the 113th Precinct stationhouse. § 87(2)(b) was later informed by § 87(2)(b) that an officer threw her phone onto the ground. § 87(2)(b) had no contact information for § 87(2)(b) or § 87(2)(b).

Victim: § 87(2)(b)

- § 87(2)(b) a § 87(2)(b) black man with black hair and brown eyes, was § 87(2)(b) at the time of the incident. He is § 87(2)(b)'s brother and § 87(2)(b)'s cousin.

Arrest Photo (encl. H2)

§ 87(2)(b) arrest photo does not reveal any visible injuries to his face or head.

Statement to IAB Group 9 (encl. L1-13)

On April 6, 2013, § 87(2)(b) was interviewed by Sgt. Meehan and Det. Phillips of IAB Group 9, and by Sgt. Ronald Smith and Sgt. Kenneth Russo of Patrol Borough Queens South Investigations at the 113th Precinct stationhouse. § 87(2)(b) stated that he was in a park across the street when he heard his brother § 87(2)(b) screaming that someone was beating up § 87(2)(b). § 87(2)(b) ran over and saw officers beating § 87(2)(b) in an unspecified manner. § 87(2)(b) was approximately sixty

to eighty yards away and started to record the incident on his phone. An unidentified 6' tall uniformed white male officer told § 87(2)(b) to "shut the fuck up," and knocked the phone out of § 87(2)(b) hands. The officer then charged at § 87(2)(b) tackling him over a three-foot fence. The officer then banged § 87(2)(b) head on the sidewalk. § 87(2)(b) also alleged he was kicked into an RMP.

Attempts to Contact § 87(2)(b)

Neither § 87(2)(b) nor his mother were able to provide further contact information for § 87(2)(b) and no police documents or database searches revealed other contact information beyond the same address as for § 87(2)(b). None of the please call letters sent to § 87(2)(b) were returned to the CCRB as undeliverable by the United States Postal Service. A query of the New York City Department of Correction (DOC) database on March 18, 2014 showed that he was not incarcerated at the time of the aforementioned contact attempts. As of the date of this report, § 87(2)(b) has made no attempts to contact the CCRB to provide a statement.

Witness: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of the incident.

§ 87(2)(b), § 87(2)(g)

Civilians Not Interviewed

§ 87(2)(b) did not respond to please call letters mailed to his address, as obtained from a search of the New York State DMV and Lexis-Nexis databases, and none of the letters were returned to the CCRB as undeliverable by the United States Postal Service. On June 26, 2013, a call was attempted to § 87(2)(b)'s cell phone number as obtained through a Lexis-Nexis search but the phone was unable to receive incoming calls. A query of the New York City Department of Correction (DOC) database on March 19, 2014 showed that he was not incarcerated at the time of the aforementioned contact attempts.

In § 87(2)(b)'s IAB interview, he identified his brother § 87(2)(b) as a witness to § 87(2)(b) being "beat up" in an unspecified manner, but did not provide any additional context. § 87(2)(g)

Fieldwork (encl. G1-7)

On the afternoon of July 17, 2013, fieldwork was conducted at six commercial locations along the southeast corner of § 87(2)(b) and § 87(2)(b) in Queens and was negative for any witnesses. There were no businesses along the southwest corner of § 87(2)(b) and § 87(2)(b) or north of § 87(2)(b) and § 87(2)(b). The buildings § 87(2)(b) and § 87(2)(b) look out over the incident location. Please call letters were posted on three signposts in the vicinity of § 87(2)(b), but have not yielded any responses thus far.

Surveillance cameras were visible at two locations, § 87(2)(b), and the § 87(2)(b) store at § 87(2)(b), and the relevant footage was later obtained.

NYPD Statements:

Subject Officer: SGT. CHRISTOPHER WARD

- Sgt. Ward, a § 87(2)(b) white man with brown hair and hazel eyes, was § 87(2)(b) years old at the time of the incident.
- Sgt. Ward worked from 2:50 p.m. on April 5, 2013 to 3:47 a.m. on April 6, 2013. He was the patrol supervisor and PO Jaeger was Sgt. Ward's operator. They were dressed in uniform and in a marked RMP.

Memo Book (encl. I1-2)

Sgt. Ward had no relevant memo book entries. He marked the start and end of his tour.

Unusual Occurrence Report (encl. I3-4)

On April 6, 2013, Sgt. Ward prepared an unusual occurrence report. He noted that he and PO Jaeger conducted a car stop at § 87(2)(b) between § 87(2)(b) and § 87(2)(b), after observing what appeared to be a narcotics transaction in a parking lot of the § 87(2)(b). Sgt. Ward noted that § 87(2)(b) pushed PO Jaeger, knocking him and Sgt. Ward to the ground. Sgt. Ward noted that it took four minutes to apprehend § 87(2)(b).

CCRB Statement (encl. I5-7)

On August 9, 2013, Sgt. Ward provided a statement to the CCRB.

On April 5, 2013 at 7:50 p.m., Sgt. Ward and PO Jaeger were driving at an unknown speed along § 87(2)(b) in Queens. The investigation determined the officers to have driven north along § 87(2)(b). From fifty to one hundred feet away, Sgt. Ward observed an unidentified man walking from an unknown location towards § 87(2)(b) who was sitting inside a vehicle in the § 87(2)(b) parking lot along § 87(2)(b).

The man walked to § 87(2)(b) and appeared to engage in a brief conversation through the driver's side window, which Sgt. Ward did not hear. Their hands then appeared to briefly touch in a manner similar to a handshake, but Sgt. Ward did not actually see their hands touch, or observe any objects exchanged. The man walked back towards one of the buildings, and § 87(2)(b) pulled his car out of the parking lot. Sgt. Ward did not see any objects in the man's hands, and could not describe either man's hand position following the transaction. Sgt. Ward described the total length of his observation as "one two three." He stated that based on the quick handshake exchange and his six years of experience as an officer previously assigned to Narcotics Borough Brooklyn North, Sgt. Ward concluded that a hand-to-hand drug transaction occurred.

Sgt. Ward reviewed § 87(2)(b)'s arrest report and clarified that he intended to stop § 87(2)(b)'s vehicle for a narcotics investigation, and that § 87(2)(b) was never charged with a drug sale. He instructed PO Jaeger to pull over § 87(2)(b) who had made a right turn on § 87(2)(b). Sgt. Ward did not recall if § 87(2)(b) violated any traffic regulations.

§ 87(2)(b) pulled over immediately in front of § 87(2)(b). The officers exited the RMP. Sgt. Ward approached the passenger's side and PO Jaeger approached the driver's side. Sgt. Ward did not observe any drugs or paraphernalia inside of § 87(2)(b)'s vehicle. As Sgt. Ward walked by the back window of § 87(2)(b)'s car, he had a view of the right side of § 87(2)(b)'s face. He did not remember if the interior lights were on. Sgt. Ward saw § 87(2)(b) placing a white, rocky substance of unknown size that appeared to be an unknown narcotic from his hand into his mouth. Sgt. Ward informed PO Jaeger of his observation and instructed PO Jaeger to remove § 87(2)(b) from his vehicle to arrest him.

Sgt. Ward did not see how § 87(2)(b) came to exit the car, but once out, § 87(2)(b) immediately swung his arms at PO Jaeger and attempted to punch PO Jaeger in the face with a closed fist. Sgt. Ward did not know if the punch contacted PO Jaeger, who was half the size of § 87(2)(b). The officers told § 87(2)(b) numerous times to stop resisting and that he was under arrest. § 87(2)(b) yelled unknown statements and did not comply with orders to place his hands behind his back.

Within seconds of the struggle, Sgt. Ward grabbed § 87(2)(b) by his left arm and brought § 87(2)(b) to the ground by sweeping his legs under. He did not know how § 87(2)(b) landed on the ground. § 87(2)(b) was kicking and flaring his arms. Sgt. Ward punched § 87(2)(b) on his left shoulder numerous times. He lost control of § 87(2)(b)'s left arm at some point. He did not know where § 87(2)(b)'s right arm was. He was unsure of which part of § 87(2)(b)'s body he and PO Jaeger engaged with, and stated that they were trying to grab his hands.

A hostile crowd of one hundred to three hundred civilians gathered, throwing bottles and other items at the officers. Sgt. Ward radioed for additional units. Three to five minutes later, an unknown number of additional plainclothes and uniformed officers from unknown commands arrived. Sgt. Ward did not know how many assisted him and PO Jaeger. Only after additional officers showed up were they able to handcuff § 87(2)(b). Sgt. Ward never struck § 87(2)(b) with his radio and denied kicking § 87(2)(b). He never removed his asp and did not see PO Jaeger do so. Sgt. Ward did not see PO Jaeger punch, kick, or use his radio or a blunt object to strike § 87(2)(b). Sgt. Ward did not see the additional officers strike § 87(2)(b) or use their asps.

Sgt. Ward did not observe any officer unholster his gun. He denied personally using profanity, or hearing any other party use profanity. He did not recall any members of the crowd attempting to film the incident, nor did he see an officer throw any cell phones to the ground.

After § 87(2)(b) was handcuffed, unidentified officers removed him from the scene.

Sgt. Ward did not interact with any civilian other than § 87(2)(b) at the scene. He did not witness any other arrest. He did not see any physical injuries to § 87(2)(b). An ambulance was called for § 87(2)(b) because of the suspected ingestion of narcotics.

Subject Officer: PO DENNIS JAEGER

- *PO Jaeger, a § 87(2)(b) white man with blonde hair and blue eyes, was § 87(2)(b) years old at the time of the incident.*
- *On April 5, 2013, PO Jaeger worked from 3:00 p.m. to 11:35 p.m. He was assigned as Sgt. Ward's operator. They were dressed in uniform and assigned to a marked RMP.*

Memo Book (encl. I8-9)

At 7:50 p.m., PO Jaeger conducted a car stop in front of § 87(2)(b). At 8:10 p.m., PO Jaeger went to the 113th Precinct stationhouse, and then to the § 87(2)(b).

AIDED Report (encl. I10-14)

§ 87(2)(b)

Line of Duty Injury Report (encl. R77)

§ 87(2)(g), § 87(2)(b)

CCRB Statement (encl. I15-17)

On August 7, 2013, PO Jaeger provided a statement to the CCRB. § 87(2)(g)

While PO Jaeger was driving at less than twenty m.p.h., Sgt. Ward pointed out § 87(2)(b)'s vehicle 50 feet away, and stated that a hand-to-hand transaction had taken place. PO Jaeger looked and saw a man who had been leaning towards the driver's side window of § 87(2)(b)'s car turn and

briskly walk away. He did not observe any physical contact between the men and did not see any objects or currency in their hands. To his knowledge, there were no other factors leading to the vehicle stop.

§ 87(2)(b) asked why he was pulled over and what he did wrong. PO Jaeger repeatedly instructed § 87(2)(b) to step out of the car. He did not use profanity. PO Jaeger did not hear Sgt. Ward say anything. PO Jaeger attempted to grab § 87(2)(b)'s arms and his shirt, and was "pulling anything I could grab." He was unsure what Sgt. Ward did. PO Jaeger did not recall any officer jumping on § 87(2)(b)'s back. He did not recall if either of them used profanity during this incident. As PO Jaeger and Sgt. Ward were attempting to lean § 87(2)(b) against the car, § 87(2)(b) was pulling back and pushing PO Jaeger towards oncoming traffic.

PO Jaeger was flung down to the ground and landed between the street and the curb, injuring his back. PO Jaeger lost his grasp of § 87(2)(b) who kept reaching underneath his body. PO Jaeger still could not tell what Sgt. Ward was doing. He did not observe Sgt. Ward kick or punch § 87(2)(b). PO Jaeger kicked § 87(2)(b) in his upper torso area and possibly struck § 87(2)(b)'s head and face with his hands. He could not describe the number of times he struck § 87(2)(b).

One or two unidentified back-up officers he could not identify assisted PO Jaeger and Sgt. Ward get § 87(2)(b)'s arms behind his back, while the others assisted in crowd control. PO Jaeger could not specify any additional force other officers used against § 87(2)(b). PO Jaeger did not see any officers use tools, asps, or flashlights in the apprehension process.

PO Jaeger observed but did not interact with any individuals recording the incident. He did not see any officer throw a civilian's cell phone to the ground. He did not see any officer unholster his gun.

PO Jaeger did not witness any other arrests at the scene.

PO Jaeger went to § 87(2)(b) for medical treatment.

Witness Officer: PO JOHN MARCANTONIO

- *PO Marcantonio, a § 87(2)(b) white man with brown hair and brown eyes, was § 87(2)(b) years old at the time of the incident.*
- *On April 5, 2013, PO Marcantonio worked from 3:00 p.m. to 11:35 p.m. He was dressed in uniform and assigned an unspecified administrative role at the 113th Precinct stationhouse.*

Memo Book (encl. I18-20)

At 7:52 p.m., PO Marcantonio responded to Sgt. Ward's call for assistance. At 7:55 p.m., PO Marcantonio arrived at the location. At 8:10 p.m., PO Marcantonio was en route to the stationhouse.

CCRB Statement (encl. I21-22)

On August 19, 2013, PO Marcantonio provided a statement to the CCRB.

PO Marcantonio heard Sgt. Ward's call for assistance and drove alone to § 87(2)(b) and § 87(2)(b). He was the first unit to respond. He saw Sgt. Ward's RMP and ten to fifteen civilians yelling for others to come out of the surrounding buildings.

As he walked nearer to Sgt. Ward's RMP, PO Marcantonio saw § 87(2)(b) in an unknown position on the ground, "wrestling" in an unknown fashion with Sgt. Ward and PO Jaeger. He did not participate in and could not describe the struggle beyond saying § 87(2)(b) was moving his arms.

Sgt. Ward instructed PO Marcantonio to keep the crowd back. PO Marcantonio stood five feet away from Sgt. Ward, but had his back to Sgt. Ward. A crowd of fifty civilians surrounded the officers, screaming. The crowd was an arm's length away from PO Marcantonio. He told the crowd to step back. They refused to leave. An unknown number of additional unidentified uniformed officers arrived a few minutes later and also engaged in crowd control. He denied observing any officer unholster his gun or use profanity, and denied doing these things himself. He was unsure if additional officers assisted Sgt. Ward

and PO Jaeger. He did not see how or when § 87(2)(b) was handcuffed. PO Marcantonio did not see any crowd member recording the incident or see any officer knock anything out of a civilian's hands.

At some point, an unidentified supervisor instructed PO Marcantonio to control traffic at § 87(2)(b) and § 87(2)(b). He did not know what happened at the scene after he left.

Witness Officer: PO GREG LEVINE

- PO Levine, a § 87(2)(b) white man with brown hair and hazel eyes, was § 87(2)(b) years old at the time of the incident. § 87(2)(b)
- On April 5, 2013, PO Levine was partnered with PO Brancato and they were dressed in uniform. They were assigned to Patrol Sectors A, G, and K in RMP #3142. He worked from 3:00 p.m. to 11:35 p.m., but worked overtime until 6:00 a.m. on April 6, 2013 to process an arrest.

Memo Book (encl. I23-25)

At 7:45 p.m., PO Levine marked that Sgt. Ward transmitted a call for assistance at § 87(2)(b) and § 87(2)(b). At 8:00 p.m., PO Levine observed § 87(2)(b) attempting to interfere with an arrest and refusing to leave. § 87(2)(b) was flailing his arms and resisting. At 8:05 p.m., he was informed by Sgt. Ward that § 87(2)(b) was observed with a quantity of substance which he ingested, and that § 87(2)(b) was also kicking, punching, and flailing his arms. At 8:15 p.m., PO Levine processed § 87(2)(b) and § 87(2)(b) arrests.

Arrest Paperwork (encl. I26-35)

PO Levine prepared criminal complaint reports #§ 87(2)(b) and #§ 87(2)(b), and arrest reports #§ 87(2)(b) for § 87(2)(b) and #§ 87(2)(b), § 87(2)(b) for § 87(2)(b). He noted that he was informed by Sgt. Ward that § 87(2)(b) was in possession of a controlled substance, and then ingested a quantity of that substance. § 87(2)(b) reportedly resisted arrest by kicking, punching, and flailing. § 87(2)(b) was charged with § 87(2)(a) 160.50 § 87(2)(b) obstructing governmental administration, criminal possession of a controlled substance in the seventh degree, resisting arrest, disorderly conduct, and violation of Vehicle and Traffic Law (VTL) §1163-A, regarding turning movements and required signals.

No additional contact information for § 87(2)(b) was available on his arrest worksheet.

Property Vouchers (encl. I36-41)

PO Levine vouchered § 87(2)(b)'s cell phones and a New York City Department of Correction parking plaque belonging to § 87(2)(b). No drugs or paraphernalia were recovered as evidence during § 87(2)(b)'s arrest.

Criminal Court Complaint Report (encl. I42-44)

On December 17, 2013, the Criminal Court Complaint report was received from the Queens District Attorney's Office pursuant to a subpoena.

PO Levine testified that he was informed by Sgt. Ward of the details as follows: Sgt. Ward observed § 87(2)(b) make a right hand turn without signaling from § 87(2)(b) onto § 87(2)(b)

§ 87(2)(a) 160.50
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

CCRB Statement (encl. I45-46)

On August 27, 2013, PO Levine provided a statement to the CCRB.

It took PO Levine and PO Brancato five or six minutes to respond to the call for assistance. Multiple marked and unmarked cars were already at the location. He did not see Sgt. Ward or PO Jaeger.

PO Levine saw up to eight unidentified officers standing by a car. He did not see § 87(2)(b) at the scene. He did not see the officers with their asps in hand. All of the officers had their radios out. He was unable to see what they were doing or hear them issue any directives. Along with seven unidentified officers, PO Levine stood across the street from the first group of officers, and engaged in crowd control. PO Levine did not see any officer unholster his gun or use the word “fuck.”

§ 87(2)(b) whom PO Levine identified by name, ran over saying, “That’s my brother.” PO Levine instructed § 87(2)(b) four times to stay back, but § 87(2)(b) tried to pass PO Levine by pushing against the right side of PO Levine’s body. Two unidentified officers assisted PO Levine in grabbing § 87(2)(b) flailing arms, and pulling him to the ground, after which they handcuffed him without difficulty.

PO Levine saw Sgt. Ward at the stationhouse. Sgt. Ward informed PO Levine that § 87(2)(b) had ingested a quantity of narcotics.

Witness Officer: PO LAINE BRANCATO, PO BRETT DEVINE, and PO RYAN DOHERTY

- *PO Brancato, a § 87(2)(b) white man with brown hair and brown eyes, was § 87(2)(b) years old at the time of the incident.*
- *PO Devine, a § 87(2)(b) white man with black hair and brown eyes, was § 87(2)(b) years old at the time of the incident.*
- *PO Doherty, a § 87(2)(b) white man with black hair and hazel eyes, was § 87(2)(b) years old at the time of the incident.*
- *On April 5, 2013, PO Brancato worked from 3:00 p.m. to 11:35 p.m. He had the same assignment as PO Levine.*
- *PO Devine worked from 6:00 p.m. on April 5, 2013 to 4:48 a.m. on April 6, 2013. He was partnered with PO Ryan Doherty to an Impact unit. They were dressed in uniform and assigned to marked van #8707.*
- *PO Doherty worked from 6:00 p.m. on April 5, 2013 to 2:35 a.m. on April 6, 2013. He had the same assignment as PO Devine.*

Memo Books (encl. I47-49, I52-54, I57-59)

At 7:55 p.m., PO Brancato responded to a call for assistance at § 87(2)(b). At 8:05 p.m., he transported a prisoner to the 113th Precinct stationhouse.

Both PO Devine and PO Doherty noted that at 8:00 p.m., they responded to a call for assistance at § 87(2)(b) and § 87(2)(b), and at 8:18 p.m., they were directed by Lt. Antonio Hernandez of the 113th Precinct Impact Response Team to return to the stationhouse.

CCRB Statements (encl. I50-51, I55-56, I60-61)

On September 23, 2013, November 25, 2013, and December 23, 2013, PO Brancato, PO Devine, and PO Doherty provided statements to the CCRB. § 87(2)(g)

PO Brancato and PO Devine did not see Sgt. Ward or PO Jaeger on scene, and PO Doherty did not see PO Jaeger. PO Doherty was instructed by Sgt. Ward to conduct crowd control.

PO Brancato, PO Devine, and PO Doherty did not recognize § 87(2)(b) s or § 87(2)(b) arrest photo. When PO Brancato arrived at the scene, he saw unidentified officers chase a man, identified by the investigation to be § 87(2)(b) towards the walkway between two § 87(2)(b) building. By the time PO Brancato exited the car, he saw that § 87(2)(b) had already been handcuffed as was

being lifted off the ground. He did not see the officers use any force against § 87(2)(b) PO Brancato had no physical contact with § 87(2)(b) and drove him to the stationhouse.

PO Doherty noted that some crowd members were threatening to “kick the officers’ asses.”

PO Doherty briefly glanced for a few seconds thirty feet behind him and saw a man identified by the investigation as § 87(2)(b) already handcuffed on the ground. PO Doherty saw two unidentified officers engaging with § 87(2)(b) one on his legs and the other on his back, holding him down. § 87(2)(b) was wiggling back and forth.

PO Brancato, PO Devine and PO Doherty stated that their guns remained holstered at the scene. They did not see any officer with their guns or asps out, and did not personally or hear any officer use profanity. They did not see any officer punch or kick any civilian, and denied seeing any officer use a blunt object to strike a civilian. They did not see any officer throw any civilian’s cell phone to the ground.

Medical Records (encl. J7-31):

§ 87(2)(a) PHL § 18(6)

NYPD Documents:

SPRINT Reports (encl. K1-11)

On April 5, 2013 at 7:52 p.m., Sgt. Ward made three requests for an additional unit to respond to the vicinity of § 87(2)(b). At 7:54 p.m., an unidentified officer reported that § 87(2)(b) was on the ground. At the same time, PO Doherty and PO Devine marked their arrival at the location in marked van #8707. At 7:57 p.m., Lt. Hernandez authorized a level 1 mobilization regarding a mob at the location. At 7:58 p.m., he reported air mail being thrown from the buildings and at 8:00 p.m., he ordered all units to return to the precinct stationhouse.

Between 8:10 p.m. and 8:35 p.m., four 911 calls were placed regarding between twenty and one hundred individuals arguing and throwing trash cans, garbage, and glass bottles into the street.

Command Log (encl. K12)

§ 87(2)(b) s arrest entry in the 113th Precinct Tour 3 Command Log on April 5, 2013 noted his physical condition as “minor injury to face/ ingested narcotics.” § 87(2)(b) arrest entry noted his physical condition as apparently normal. No additional contact information for § 87(2)(b) was noted.

Roll Calls (encl. K13-23, K24-29)

The 113th Precinct Tour 3 Roll Call on April 5, 2013 showed the following assignments: Sgt. Ward was working as the patrol supervisor, PO Jaeger was working as Sgt. Ward’s operator, PO Brancato was assigned to Patrol Sectors A, G, K, and PO Marcantonio was assigned to a conditions unit. PO Brancato and PO Marcantonio had no assigned partners. PO Levine was not listed on the Roll Call.

The Patrol Borough Queens South Impact Response Team (IRT) Roll Call on April 5, 2013 showed that Lt. Hernandez was working as the IRT lieutenant, and that PO Devine and PO Doherty were assigned to an Impact Auto unit in marked van #8707.

Other Evidence:

Maps (encl. D7-8)

Two Google Streetview maps of the intersection of § 87(2)(b) and § 87(2)(b) show that the § 87(2)(b) parking lot appears to be within fifty feet of the intersection and is clearly visible from the intersection.

Queens County District Attorney's Office Intake Bureau Crime Report (encl. M1-11)

§ 87(2)(g)

§ 87(2)(b), § 87(2)(g)

Arrest for Incident and Disposition (encl. Q5)

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings (encl. Q1)

- As of February 20, 2014, § 87(2)(b) has not filed a notice of claim against the City of New York regarding this incident.

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilians CCRB History (encl. C4-6)

- This is the first CCRB complaint filed by § 87(2)(b) and § 87(2)(b)

Subject Officers CCRB History

- Sgt. Ward has been a member of the service for ten years and there is one substantiated CCRB allegation against him (encl. C1-2).
 - In CCRB case number 200905624, the CCRB substantiated an entry and search allegation against Sgt. Ward and recommended charges. In December 2012, the NYPD found Sgt. Ward guilty at trial and penalized him with the forfeiture of five vacation days.
- PO Jaeger has been a member of the service for eight years and there are no substantiated CCRB allegations against him (encl. C3).

Conclusion

Identification of Subject Officers

Sgt. Ward acknowledged instructing PO Jaeger to pull over § 87(2)(b)'s car § 87(2)(g).

Sgt. Ward and PO Jaeger acknowledged using physical force while apprehending § 87(2)(b).

Allegations Not Pleaded

§ 87(2)(b) stated that he was informed by § 87(2)(b) that an unidentified officer threw her phone to the ground. In her initial complaint to IAB, § 87(2)(b) did not make any allegations on her own behalf. She did not cooperate with the CCRB to provide any statement.

In her initial complaint to IAB, § 87(2)(b) only alleged that unspecified officers used physical force against § 87(2)(b). § 87(2)(b) was unavailable to provide a statement to the CCRB, however, he alleged to officers of IAB Group 9 and Patrol Borough Queens South Investigations that a 6' tall white male officer spoke rudely to him. § 87(2)(b) did not witness this allegation.

Investigative Findings and Recommendations:

Allegation A- Abuse of Authority: Sgt. Christopher Ward authorized the stop of the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that Sgt. Ward instructed PO Jaeger to pull over § 87(2)(b)'s vehicle as it turned onto § 87(2)(b).

Neither Sgt. Ward nor PO Jaeger, interviewed four months after the incident, independently recalled § 87(2)(b) committing any crimes other than potentially engaging in a hand-to-hand transaction in the § 87(2)(b) parking lot. § 87(2)(b), § 87(2)(g).

§ 87(2)(b) indicated that his last interaction with his friend was inside of the apartment, and that he drove off after entering his vehicle. He did not indicate that he violated any traffic regulations. He stated that while at the stationhouse, an unidentified officer informed him that one of the factors leading him to be pulled over was for an unspecified traffic stop.

Among other crimes related to § 87(2)(a) 160.50, resisting arrest, and drug possession, § 87(2)(b)'s arrest report noted he was charged with violation of VTL§1163-A.

The Criminal Court Complaint and the Queens County District Attorney's Office Intake Bureau Crime Report were received by the investigation following the officer interviews. The Criminal Court Complaint, completed the day after the incident, and the Intake Bureau Crime Report consistently reported that PO Levine was informed by Sgt. Ward that Sgt. Ward observed § 87(2)(b) made a right turn without signaling onto § 87(2)(b).

Vehicle and Traffic Law §1163-A, requires that a motorist must give an appropriate signal when turning at an intersection (encl. B1). An officer may stop a vehicle if the officer observes the vehicle commit a violation of the Vehicle and Traffic Law. People v. Spencer, 84 N.Y.2d 749 (1995) (encl. B2-10).

§ 87(2)(g)

Therefore, it is recommended that Allegation A be closed as **exonerated**.

Allegation B- Discourtesy: Sgt. Christopher Ward spoke rudely to § 87(2)(b)

§ 87(2)(b) alleged that Sgt. Ward, upon approaching his vehicle, instructed § 87(2)(b) to “step the fuck out of the car.” Sgt. Ward denied using any profanity during the incident, and PO Jaeger did not hear Sgt. Ward make any statements to § 87(2)(b)

§ 87(2)(g)

Therefore, it is recommended that Allegation B be closed as **unsubstantiated**.

Allegation C- Force: PO Dennis Jaeger used physical force against § 87(2)(b)

Allegation D- Force: Sgt. Christopher Ward used physical force against § 87(2)(b)

Allegation E- Force: Officers used physical force against § 87(2)(b)

It is undisputed that § 87(2)(b) willfully resisted arrest while standing and on the ground. It is undisputed that Sgt. Ward and PO Jaeger punched § 87(2)(b) an unknown amount of times during the struggle. It is undisputed that § 87(2)(b) was handcuffed after backup officers arrived.

§ 87(2)(b) a 6’ tall, two-hundred-fifty-pound man, alleged that PO Jaeger, a 5’8” tall, one-hundred-sixty-pound man, grabbed him out of the car, and jumped on his back. § 87(2)(b) stated that he was moving around, screaming to attract attention. Once brought to the ground, he alleged that additional unidentified officers surrounded him and kicked him in the face and sides of his head, his back, and his ribs. He stated that he tucked one of his hands underneath his stomach, disobeying officer directives to release his hands. He did not allege any additional force used against him upon his being handcuffed.

Sgt. Ward and PO Jaeger consistently stated that § 87(2)(b) attempted to punch PO Jaeger in the face upon exiting the car, which is supported by the TARU video footage and by all police documentation completed in regards to the incident. Sgt. Ward stated he brought § 87(2)(b) to the ground with a sweeping motion to his legs, and then punched § 87(2)(b) in the shoulder. PO Jaeger stated he kicked § 87(2)(b) in the upper torso and possibly struck § 87(2)(b) s head and face with his hands. No other officer interviewed witnessed Sgt. Ward, PO Jaeger, or another officer deploy any excessive force against § 87(2)(b)

TARU video footage of the incident captured the beginning of the interaction between § 87(2)(b) Sgt. Ward, and PO Jaeger, and refutes § 87(2)(b) s claim of PO Jaeger pulling him out of the vehicle and then jumping on his back. The footage showed that § 87(2)(b) s movements led Sgt. Ward and PO Jaeger to be spun around towards the direction of active traffic. Because the struggle happened on the ground behind § 87(2)(b) s car, camera visibility of the rest of the apprehension process was obscured. However, the footage showed that it took four minutes and more than five officers for § 87(2)(b) to be secured.

§ 87(2)(a) PHL § 18(6)

Patrol Guide Procedure 203-11 states that an officer must use the minimum force necessary to overcome resistance to effect an arrest (encl. B11-12).

§ 87(2)(g)

Therefore, it is recommended that Allegations C, D, and E be closed as **exonerated**.

Allegation F- Force: Officers struck § 87(2)(b) with blunt instruments.

Allegation G- Force: Officers struck § 87(2)(b) with asps.

§ 87(2)(b) alleged that while he was still standing, he felt an unidentified officer strike him repeatedly in the head with a heavy object he could not otherwise describe. He then felt what seemed to be metal asps striking his knees an unknown number of times. He alleged the beating lasted fifteen minutes.

All officers interviewed denied engaging in or witnessing the above allegations.

§ 87(2)(g)

The TARU camera footage clearly showed that Sgt. Ward and PO Jaeger were the only officers to engage with § 87(2)(b) at the time he was brought to the ground, which occurred within a matter of sixteen seconds. Additionally, the footage, which showed multiple officers running behind the car and surrounding § 87(2)(b) who is out of view of the camera, did not depict any officer making any motions consisting with wielding or swinging an impact weapon at § 87(2)(b).

§ 87(2)(g)

Therefore, it is recommended that Allegations F and G be closed as **unfounded**.

Allegation H- Discourtesy: Officers spoke rudely to § 87(2)(b)

Allegation I- Force: An officer pointed his gun at individuals.

It is undisputed that between fifteen and one hundred individuals were gathered at the location within three feet of the officers conducting crowd control, and were screaming. It is undisputed that the situation escalated following § 87(2)(b)'s arrest, and that a level one mobilization was called.

§ 87(2)(b) alleged while struggling on the ground, a crowd had already gathered and he heard unidentified officers instruct him to "give them his fucking hands." After being placed in the back of an RMP, he observed an unidentified plainclothes male officer point his gun at the crowd.

No officer interviewed acknowledged or witnessed these allegations. The officers consistently stated that the crowd was hostile and encroaching within feet of the officers. In addition, they all stated that "air mail" was being thrown at them from above the buildings.

Video footage of the incident, which did not capture any events south of § 87(2)(b)'s vehicle, also did not capture any officer engaging in crowd control or with their firearm displayed.

§ 87(2)(g)

Patrol Guide Procedure 203-09 requires officers to be courteous and respectful in their interactions with civilians (encl. B16). In a stressful street encounter, an officer may be justified in using profanity to accomplish a law enforcement objective. Police Department v. White, OATH Index No. 78667/03 (encl. B13-15). An officer is permitted broad discretion in pointing his firearm if he reasonably fears for his safety or the safety of others. Police Department v. Gliner, OATH Index No. 955/00 (September 6, 2000) (encl. B17-35).

§ 87(2)(g)

Therefore, it is recommended that Allegations H and I be closed as **exonerated**.

Allegation J- Force: Officers used physical force against § 87(2)(b)

§ 87(2)(b) reported to IAB that unidentified officers used unspecified physical force against § 87(2)(b). Despite numerous contact attempts, § 87(2)(b) was unable to be reached to provide a statement, and no witness statements could be obtained on his behalf. Therefore, it is recommended that Allegation J be closed as **victim unavailable**.

§ 87(2)(g), § 87(4-b)

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date